

SENATE No. 1278

The Commonwealth of Massachusetts

PRESENTED BY:

John C. Velis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to establish the Massachusetts judicial security act.

PETITION OF:

NAME:

John C. Velis

DISTRICT/ADDRESS:

Hampden and Hampshire

SENATE No. 1278

By Mr. Velis, a petition (accompanied by bill, Senate, No. 1278) of John C. Velis for legislation to establish the Massachusetts judicial security act. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1133 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to establish the Massachusetts judicial security act.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The General Laws are hereby amended by inserting after chapter 156 the following
2 chapter:-

3 CHAPTER 221D. MASSACHUSETTS JUDICIAL SECURITY ACT

4 Section 1. As used in this chapter, the following words shall, unless the context clearly
5 requires otherwise, have the following meanings:

6 “Data broker” a commercial entity that collects, assembles, or maintains personal
7 information concerning an individual who is not a customer or an employee of that entity in
8 order to sell the information or provide third party access to the information.

9 "Immediate family" the spouse, child, or parent or any other blood relative who lives in
10 the same residence as a justice or retired justice of the supreme judicial court, appeals court or
11 trial court.

12 "Personal information" the Social Security number, home address, home phone number,
13 mobile phone number, or personal email of, and identifiable to, that individual

14 "Protected individual" a justice or retired justice of the supreme judicial court or appeals
15 court, a judge, recall judge or retired judge of the trial court any active, formerly active, or retired
16 justice of the United States supreme court; judge of the United States court of appeals, judge or
17 magistrate judge of the United States district court, judge of the United States bankruptcy court

18 Section 2. (a) No state agency, county agency or municipal agency shall publicly post or
19 display the personal information of any protected individual on the internet without first
20 obtaining the written permission of that individual.

21 (b) Each protected individual may file a written notice of their status as a protected
22 individual, for themselves and immediate family to any state agency, county agency or municipal
23 agency; and ask each state agency, county agency or municipal agency to mark as confidential
24 that protected individual's personal information.

25 (c) Upon receipt of a written request in accordance with this section, the state agency,
26 county agency or municipal agency shall remove the protected individual's personal information
27 from publicly available content within 72 hours.

Section 3. (a) It shall be unlawful for a data broker to sell, license, trade, purchase, or otherwise provide or make available for consideration a protected individual's personal information.

(b) No person, business, or association shall publicly post or publicly display the personal information of a protected individual or a protected individual's immediate family on the internet if the protected individual has, either directly or through an agent, made a written request of the data broker, person, business, or association to not disclose said personal information.

(c) A data broker, person, business, or association, shall upon receipt of a written request in accordance with this section, remove the personal information in question from the internet within 72 hours.

(d) A data broker, person, business, or association shall ensure, after receiving a written request in accordance with this section, that the protected individual's personal information is not made available on any website or subsidiary website controlled by that data broker, person, business, or association.

(e) After receiving a protected individual's written request, no data broker, person, business, or association shall transfer the judges' personally identifiable information to any other person, business, or association through any medium.

(f) An at-risk individual whose judges' personally identifiable information is made public as a result of a violation of this Act may bring an action seeking injunctive or declaratory relief in any court of competent jurisdiction. If the court grants injunctive or declaratory relief, the person, business, or association responsible for the violation shall be required to pay the at-risk individual's costs and reasonable attorney's fees.

Section 4. This Act shall take effect 120 days after its enactment.